

		resolve the objections to the pleading and obviate the need for filing the demurrer. [CCP § 430.41] Likewise, a party must meet and confer before filing a motion to strike. [CCP §§ 435.5] It is apparent that no meet and confer has taken place as to the substance of the motions as required by CCP §430.41 and CCP §435.5. Motions are continued to August 20, 2026 at 1:30 p.m. for counsel for Moving Defendants and Plaintiff to meet and confer pursuant to CCP §430.41. Nine (9) Court days prior to the continued hearing date, Defense counsel is ordered to file a supplemental declaration establishing the results of the meet and confer. The Court further notes that the use of hyperlinks is inappropriate and will be disregarded. The Case Management Conference is also continued to August 20, 2026 at 1:30 p.m. <i>Clerk to give notice.</i>
111	LUC vs. MAI, 26-01568185	Defendants Jimmy Mai and Tiffany Mai ("Defendants") move for an order expunging the Notice of Pendency of Action filed by plaintiff Mimi Diem Luc ("Plaintiff") and awarding them attorney's fees and costs against Plaintiff. "A lis pendens—also called a notice of pendency of action—is a document filed with a county recorder that provides constructive notice of a pending lawsuit affecting the real property described in the notice. [Citations.] Any party may record a lis pendens when the lawsuit involves a 'real property claim.' " (<i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 275.) "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (Code Civ. Proc., § 405.31.) " 'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Code Civ. Proc., § 405.4.) A notice of lis pendens shall also be expunged if the claimant has not established by a preponderance of the evidence the

probable validity of the real property claim. (Code Civ. Proc., § 405.32.)

Here, although not pled at the time the motion was filed, Plaintiff pleads a cause of action for quiet title in her First Amended Complaint. The allegations of the petition determine whether a “real property claim” is involved; no independent evidence is required. (*Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149.) In this case, the quiet title cause of action would affect title to and right to possession of the property at issue. (See Verified FAC ¶¶ 4, 6.) Accordingly, it is a real property claim within the meaning of the statute.

To establish the probable validity of her claim, Plaintiff must show “it is more likely than not that [she] will obtain a judgment” on the real property claim. (*Newell v. Superior Court* (2024) 107 Cal.App.5th 728, 735.)

Plaintiff has failed to meet her burden. Plaintiff contends that she was fraudulently induced into executing escrow documents transferring the subject property to Defendants because Plaintiff’s mother (Tang) told her that Tang owed Defendants money for the construction of an ADU on the property. (Verified FAC ¶ 16.) Additionally, Tang told Plaintiff that substantial medical liens would be recorded on the property if title was not transferred to someone else, due to Plaintiff’s father’s ever-increasing medical expenses. (Verified FAC ¶ 17.) Plaintiff does not deny that she executed various documents on 4/6/25 before a notary public (ROA 40, Luc Decl. ¶ 7.) However, she claims that she did not realize at the time that one of the documents was a grant deed transferring her interest in the property to Defendants. (Ibid.) Plaintiff also denies executing Amended Escrow Instructions on 4/7/25 which purport to show that the consideration for the transfer of the property to Defendants were the loans previously made by Defendants for the construction of the ADA. (Id. at ¶ 10; Mai Decls. ¶¶ 7-8, Exhs. B.)

Based on the assertions in Plaintiff’s verified FAC, however, it appears more likely than not that Plaintiff was aware on 4/6/26 that she was executing documents for the purpose of transferring title to Defendants, and that she did so for the purpose of repaying the construction loan and avoiding medical liens on the property.

Accordingly, the motion to expunge is GRANTED.

Defendants may file a separate motion for attorneys’ fees pursuant to CCP §405.38.

		Defendants' requests for judicial notice are denied as immaterial to the disposition of this motion and because Defendants failed to provide the Court with copies of the subject documents. The Court notes that Plaintiff made several informal requests for judicial notice in the body of her briefs. These requests do not comply with CRC 3.1113(I) and are denied. <i>Defendants to give notice.</i>
112	Alpine Equipment Funding, Inc. vs. Guerra, 23-01328771	Plaintiff/Judgment Creditor, Alpine Equipment Funding, Inc. ("Judgment Creditor"), moves for an order (1) authorizing the Los Angeles County Sheriff to enter private property located at 6409 Planada Avenue, Los Angeles, California, for the limited purpose of levying identified vehicles owned by the Judgment Debtor pursuant to Code of Civil Procedure section 699.030; and (2) authorizing Judgment Creditor, while the Sheriff is executing the levy, to repossess equipment owned by Judgment Creditor and wrongfully retained by the Judgment Debtor, pursuant to Code of Civil Procedure section 187 and applicable commercial law. Judgment Creditor asserts that it seeks a narrowly tailored order authorizing entry onto private property to enforce a valid judgment that has gone unsatisfied despite extensive post judgment enforcement efforts. Judgment Creditor provides that on January 12, 2024, the Court entered a default judgment in favor of Judgment Creditor against Judgment Debtor Mario Guerra, Jr. ("Judgment Debtor") in the amount of \$140,356.85, and that Judgment Debtor has paid nothing towards satisfaction of the judgment and has refused to participate in any post-judgment proceedings. Judgment Creditor contends that it has identified non-exempt assets belonging to Judgment Debtor, including four vehicles titled in his name, which are regularly kept at or around his residence and frequently stored behind a locked six-foot fence, and that Judgment Creditor has probable cause to believe that Judgment Debtor continues to possess specialized equipment owned by Judgment Creditor and leased to Judgment Debtor under equipment finance lease agreements that are in default—namely, the Dancutter System and Perma-Liner pipelining systems (the "Equipment"). Judgment Creditor asserts that because the vehicles and equipment are concealed within a private area inaccessible to the levying officer, Judgment Creditor seeks an order under Code of Civil Procedure section 699.030 authorizing the Sheriff to enter the premises for the limited purpose of levying the identified vehicles as well as seeks authorization under Code of Civil Procedure section 187 to repossess its own equipment while the Sheriff is lawfully present executing the levy. Code of Civil Procedure section 699.030 provides, in part: